

Court No. - 29

Case :- WRIT - C No. - 4417 of 2017

Petitioner :- Mahendra Pratap Singh

Respondent :- State Of U.P. & 8 Others

Counsel for Petitioner :- In Person

Counsel for Respondent :- C.S.C.

Hon'ble Tarun Agarwala,J.

Hon'ble Abhai Kumar,J.

Sri Baleshwar Chaturvedi is directed to receive copy of the writ petition for respondent nos.2 to 6.

Petitioner is directed to serve copy of the writ petition to Sri Baleshwar Chaturvedi during the course of the day.

As prayed, put-up this matter day after tomorrow.

Order Date :- 31.1.2017

Ajeet

(Tarun Agarwala, J.)

(Abhai Kumar, J.)

Court No. - 29

Case :- WRIT - C No. - 4417 of 2017

Petitioner :- Mahendra Pratap Singh

Respondent :- State Of U.P. & 8 Others

Counsel for Petitioner :- In Person

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Tarun Agarwala,J.

Hon'ble Abhai Kumar,J.

The petitioner appears in person.

Sri Baleshwar Chaturvedi, the learned counsel for the respondent nos.2 to 6 is allowed three weeks' time to file a counter affidavit.

List on 27.02.2017.

Order Date :- 2.2.2017

MAA/-

(Abhai Kumar,J.)

(Tarun Agarwala,J.)

Court No. - 29

Case :- WRIT - C No. - 4417 of 2017

Petitioner :- Mahendra Pratap Singh

Respondent :- State Of U.P. & 8 Others

Counsel for Petitioner :- In Person

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Tarun Agarwala,J.

Hon'ble Vivek Chaudhary,J.

Put up this matter tomorrow, i.e., on 28.02.2017.

Order Date :- 27.2.2017

YK

(Vivek Chaudhary, J.) (Tarun Agarwala, J.)

Court No. - 29

Case :- WRIT - C No. - 4417 of 2017

Petitioner :- Mahendra Pratap Singh

Respondent :- State Of U.P. & 8 Others

Counsel for Petitioner :- In Person

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Tarun Agarwala, J.

Hon'ble Abhai Kumar, J.

Counter affidavit filed today is taken on record.

Upon hearing the learned counsel for the petitioner, in person, we direct the petitioner to deposit a sum of Rs.45,126/- within ten days from today which he admits to be payable.

List this matter again on 20.3.2016, on which date proof of such deposit shall be filed.

The learned counsel for the Electricity Department will indicate the justification of charging surcharge of Rs.1,21,163/- as depicted on page 63 of the paper book.

Order Date :- 28.2.2017

AKJ

(Abhai Kumar, J.)

(Tarun Agarwala, J.)

Court No. - 29

Case :- WRIT - C No. - 4417 of 2017

Petitioner :- Mahendra Pratap Singh

Respondent :- State Of U.P. & 8 Others

Counsel for Petitioner :- In Person

Counsel for Respondent :- C.S.C., Baleshwar
Chaturvedi

Hon'ble Tarun Agarwala, J.

Hon'ble Vivek Chaudhary, J.

The petitioner appears in person and has sent a letter through post, which has been placed by the Registry before the Court indicating that he is also required to appear in Supreme Court of India today in another matter, therefore, he cannot be present at two places at the same time and prays for adjournment.

We, accordingly, accept his request and adjourn the matter.

Sri S.K. Dubey, Advocate, who has also made a request on behalf of the petitioner to adjourn the matter, shall communicate about the next date of listing to the petitioner concerned.

List this matter on 06.04.2017.

Order Date :- 20.3.2017

AU

(Vivek Chaudhary, J.) (Tarun Agarwala, J.)

Court No. - 10

Case :- WRIT - C No. - 4417 of 2017

Petitioner :- Mahendra Pratap Singh

Respondent :- State Of U.P. & 8 Others

Counsel for Petitioner :- In Person

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Arun Tandon,J.

Hon'ble Raghvendra Kumar,J.

This writ petition has been filed by one Mahendra Pratap Singh against the order of the Electricity Consumer Grievance Redressal Forum, Aligarh Region, Aligarh dated 16.9.2016.

Facts in short leading to the present writ petition are as under :

The petitioner had admittedly obtained an electricity supply connection from the Electricity Department of the State of U.P. Initially he had a sanctioned load of 11 KW. This connection was, however, got permanently disconnected on 14.8.1998. For his residence the petitioner obtained a separate connection with a total load of 1 KW, which was sanctioned and energized on 25.7.1985 bearing service Connection No. 027516.

It is admitted on record that in respect of this sanctioned load, the petitioner did not deposit even a single penny towards the consumption of the electricity for a full period of 31 years. He was served with a demand notice/recovery certificate for a sum of Rs.3,31,940 and odd. Not being satisfied with the demand notice, he raised objection under clause 6.5 of U.P. Electricity Supply Code 2005 which was rejected.

He filed a complaint before the Electricity Consumer Grievance Redressal Forum, Agra Division, Agra which was registered as Case No 761 of 2016/Mainpuri. An application was made by him for transferring the case. The case was transferred to the Electricity Consumer Grievance Redressal Forum, Aligarh with the same registration Number.

During the course of hearing of the matter before the aforesaid Forum, the Electricity Department revised the bill which was issued to the petitioner earlier and vide revised Bill dated 6.1.2016 a total demand of Rs. 1,69,784/- was made. A letter for revised recovery certificate for the same amount was also issued by the District Magistrate, Mainpuri vide letter No.4835 dated 30.1.2016. Against this recovery certificate, the petitioner deposited a sum of Rs.18,000/- on 4.3.2016.

The record as made available to us reflects that no money has been deposited by the petitioner thereafter. The Electricity Consumer Grievance Redressal Forum has recorded that the petitioner has neither challenged the revised bill of Rs.1,66,000 and odd nor the recovery certificate issued in pursuance thereof. No money was deposited by the petitioner for a period of 31 years.

The complaint of the petitioner has therefore been rejected. Hence this petition.

The petitioner submitted that the revised bill has been prepared only on the basis of average consumption without reference to actual readings noted in the ledger account of the Department concerned. He, therefore, submitted that the Electricity department concerned may be called upon to produce the ledger for examining correctness or otherwise of the revised bill issued.

In our opinion, writ court is not the proper forum to challenge the impugned assessment. If the petitioner has any grievance as regards to correctness of the demand raised, he has to take recourse to the procedure under clause 6.5 of U.P. Electricity Supply Code, 2005. It is for the concerned authority to examine all aspects of the matters as may be raised by the petitioner.

But without challenging the bill, the question of challenging the recovery certificate does not arise in as much as the Hon'ble Supreme Court of India in the cases of ***Government of Maharashtra vs. Deokar's Distillery; (2003) SCC 669 and Barkat Ali Versus Badri Narain ; AIR 2008 SC 1272 and P.Chithranja Menon vs. A.Balakrishnan ; AIR 1977 SC 1720***, has held that if the basic order is not under challenge, consequential order cannot be subjected to challenge.

In view of the aforesaid, we find no error in the order dated 16.9.2016 passed by the Electricity Consumer Grievance Redressal Forum, Aligarh Region, Aligarh. We may clarify that if the petitioner has any grievance with regard to revised bill, he is at liberty to challenge the same under clause 6.5 of Electricity Supply Code, 2005 before the appropriate authority.

The writ petition is **dismissed**.

Interim order,if any, stands discharged.

Order Date :- 6.4.2017

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